

The Life of the Rule of Law

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Abstract

The rule of law has become all things to all people, which is precisely why it has been hard to define. Rather than attempt that feat, this article traces how the rule of law has developed as a set of specific governing practices both in the history of comparative law and in recent policy debates. Whereas national legal traditions blended ideas about the constraining effects of law with normative ideas about the organization of politics, the policy conversation has tended to depoliticize law altogether. As a result, it became possible for aspirational autocrats determined to undermine normative legal constraints to game the system and use law for autocratic ends. The rule of law is now beginning a new life, however, through a movement to deparochialize law and re-embed it in transnational norms. This rule of law writ large has become a new touchstone for holding political power accountable through law.

The life of the law has not been logic: it has been experience. The felt necessities of the time, the prevalent moral and political theories, intuitions of public policy, avowed or unconscious, even the prejudices which judges share with their fellow-men, have had a good deal more to do than the syllogism in determining the rules by which men should be governed.

—Oliver Wendell Holmes, *The Common Law* (1881)

1. INTRODUCTION

Oliver Wendell Holmes's famous admonition about "the life of the law" inspired the field of sociolegal studies. Look behind formal legal doctrine to understand what law is, he counseled. Consider the context in which law is made and applied. Take into account the views of those who deploy it. Only then will it be clear what law actually is in the world.

The same can be said about the rule of law. Like the public officials who create and interpret black-letter law, philosophers and legal scholars have promulgated black-letter definitions of the rule of law and fought over which should win [Craig 1997, Fuller 1964, Marmor 2004, Raz 1979, Rundle 2023, Tamanaha 2004, Waldron 2023 (2016)]. To understand what the rule of law is in practice, however, one should look instead at the contexts in which it is invoked and what those who are deploying it are trying to do. Are they explaining key features of the legal system in which they currently sit? Are they invoking power, seeking legitimation, or unmasking the claims of others? Are they disguising arbitrariness or erecting a bulwark against it? Are they advancing general values or limiting them? Just as the law has a life, so too does the rule of law.

In fact, the rule of law has many lives. Those who agree on little else these days nonetheless agree on the value and importance of the rule of law. But they cannot possibly mean the same thing by it, given the enormous differences among those who praise it. It is used the world over in diverse legal and political systems to point to very different features of the relationship between law and politics (Costa & Zolo 2007). Moreover, the rule of law is used as justification of their activities by both democrats and autocrats (Scheppele 2018), by international organizations (UN Secr. Gen. 2004) as well as by states (Hurd 2017), by those advocating transnational values (Pech 2022, Scheppele et al. 2020), and also by those insisting on distinctive local constitutional identities (Jacobsohn 2010). It is hard to find anyone arguing against the rule of law, but it is easy to find people talking past each other on the subject.

Given these fundamental disagreements, it is not surprising that the rule of law is generally thought of by philosophers as an "essentially contested concept" that, following Gallie (1956), points to disagreement over what constitutes the core of the idea itself. Waldron (2021, p. 121, emphasis in original) cautions that essential contestation over the rule of law, however, should not invite relativism. He makes the case that "contestation between... rival conceptions works to enrich rather than impoverish our understanding of the heritage that has been associated over the centuries with legal and political uses of *the rule of law*." So then, why doesn't this just end the debate? The rule of law is many things to many people, circling around a fuzzy core.

Two contradictory explanations can be offered for why the rule of law has generated such a proliferation of meanings and continuing controversies over its invocation. One is that the concept of the rule of law does in fact pick out something definite in the world with a large range of different features so that it is like the elephant described by the blind men. The multiplicity of descriptions does not deny the existence of elephants. It just means that elephants are complicated, and no one should think that elephants disappear when a part is mistaken for the whole. On this view, core debates over the rule of law are the result of blind philosophers touching different parts of the concept.

But, on a different view, maybe different sighted philosophers are describing different animals. In his thirteenth-century trip around the world, Marco Polo declared he had encountered a unicorn. From his detailed description, and our modern certainty that unicorns do not exist, we can now identify his storied beast as a rhinoceros. His medieval taxonomy of animals branded all giant one-horned creatures as unicorns, something modern science does not now do. Eco (1998, p. 53), reading Marco Polo's account of the unicorn, explained the explorer's dilemma: "We travel knowing in advance what we are on the verge of discovering because past reading has told us what we are supposed to discover." Perhaps it is the same with the rule of law. Are the varying accounts of the rule of law dependent on what those who set out to look for it thought was already there? Do we need a more complex taxonomy of the beasts that prowl this territory to match our modern sense of legal diversity?

In this article, I argue that the rule of law matters beyond philosophy and that tracking the life of the rule of law will help us to understand better what it does in the world. In documenting rule of law practices, we see that the Anglo-American philosophy of law that has dominated writing in English has created particular expectations about what English speakers will find when we travel, and it even shapes what we see when we look at the legal systems that did not originate with the common law. But the rule of law is loose in the world of legal systems that are quite differently constructed. The rule of law is also loose in the wild of legal practice as it is deployed by those seeking to either legitimate or criticize facts on the ground in policy debates. Thus, the debates over the rule of law extend well beyond a cozy range of disagreement among philosophers writing predominantly in English about legal systems that have spread forth in the world from English roots. That said, the variety of meanings one finds in the world does not require a resort to relativism. Even with a multiplicity of meanings loose in the world and in the wild, it still may be possible to put a common idea of the rule of law to good use.

In this article, we together explore the life of the rule of law with the aim of developing a sociolegal account of why appeals to the rule of law have become so ubiquitous and yet have been so hard to reconcile. We review what work the rule of law and its global cousins do. First, we tour the legal-theoretical conceptions that vary across legal systems in a section on the rule of law in the world. As we see, different legal cultures have developed different ways of understanding how law constrains political power, at least in part because the world's legal systems are organized quite differently. In some conceptualizations, judges and courts are at the center of concern; in others, it is the organization of the state itself or the inherent pluralism of legal norms that embeds rule of law constraints in daily politics. How any particular legal culture imagines the rule of law will depend on how it imagines law.

We then tour the practical conceptions of the rule of law that are being deployed by those who are attempting to use the rule of law as a policy tool in a section on the rule of law in the wild. As we see, debates over the rule of law are not just an unruly cacophony that leads to relativism. Instead, these debates highlight the practical challenges faced by international organizations and internationally minded actors because the organization of law cannot be so neatly separated from the organization of state and politics. Developing practical frameworks to underwrite the rule of law holds out hope for preventing both disingenuous gamesmanship of the law by malign political actors and conceptual vertigo, as I argue in a final section on the rule of law writ large. This new conception of the rule of law takes us into its current policy uses defending democracy from autocracy.

Paraphrasing Holmes, then, this article demonstrates that the life of the rule of law has been not logic but experience. Understanding how the rule of law operates in the world is as crucial for understanding the rule of law as it is for understanding the law itself.

2. THE GLOBAL RULE OF LAW CRISIS

Before we start, however, it is important to explain why we need to think about this topic at all in our present moment. Those who track this subject agree that the world is in the middle of a global rule of law crisis. In country after country, the sense that politics is escaping from the constraints of law has created an urgency to understand how the rule of law works, what it is supposed to do, and how it is supposed to hold politics to account. By tracking how the rule of law may die, we may learn more about what would make it live.

Democracy and rule of law raters have been warning repeatedly over the last two decades that the world is experiencing a crisis of both. Multiple indicators measuring the health of governments have declined since the turn of the millennium, accelerating in recent years (Freedom House 2023, V-Dem Inst. 2023, World Justice Proj. 2023a). Although “democratic backsliding” has been the conceptual framework within which this crisis has been generally understood (Bermeo 2016), a parallel crisis is occurring with regard to the rule of law, which—while generally associated with democratic governance—is not the same thing. As a Brookings Institute commentator recently noted, “The main drivers of this worrisome pattern [with regard to the rule of law] are a growing disrespect for human rights, weakening checks on government power, and malfunctioning justice systems” (Piccone 2023).

The World Justice Project has been the leading monitor quantitatively measuring respect for the rule of law, and given the conceptual pluralism that characterizes the field, it wisely does so in multiple ways. In separate indices, the World Justice Project assesses (a) whether those who govern are themselves bound by law, (b) whether public corruption is rampant, (c) whether government is open and transparent, (d) whether core rights are strictly protected, (e) whether law and order prevails, (f) whether law is enforced as written, (g) whether ordinary people can resolve their grievances peacefully through law, and (h) whether the criminal justice system works effectively (World Justice Proj. 2023b). On virtually all of their various measures, the rule of law has weakened over the last decade in more than three-quarters of the 140 countries that they studied. The biggest declines were registered in the measures that assessed constraints on government powers, adherence to fundamental rights, and the efficacy of criminal justice systems (World Justice Proj. 2023c). They (and virtually all other monitors of good government around the world) know that the lights are flashing red on rule of law observance.

The rule of law crisis may be correlated with democratic backsliding, but is not reducible to it (Krygier 2021). Many of the leaders attacking the rule of law these days have come to office through elections. These aspirational autocrats in democratic garb consistently refer to their own democratic mandate as a reason to unsettle legal certainty by modifying the law that they inherited (Scheppele 2018). But just because law is changed using its own previously authorized procedures is no guarantee that the rule of law is therefore honored. Much depends on the substance of the changes and their overall effects. When democratically elected leaders repeatedly change the law whenever the old law constrains them and attack the judges who remind them that the law used to be different, then we should inquire into how far democracy and the rule of law necessarily run together.

Whatever else the rule of law may be, some piece of it involves putting a drag on democratic enthusiasms to slow them down, temper a rush to change, and hold leaders to standards more enduring than their momentary whims (Raz 2019). Although democracy empowers leaders chosen through elections to govern as they promised, the rule of law limits the way that they can carry out their democratic mandates (O'Donnell 2004). The rule of law and democracy therefore always exist in some tension.

To understand the life of the rule of law, then, we need to understand how the concept has been deployed to both promote and disguise very different types of political projects and very different

understandings of the relationship between law and politics, particularly democratic politics. The new autocrats crashing their respective democracies across the world these days get away with attacking the rule of law in part because of confusions about just what the rule of law is supposed to protect. In the multiplicity of these contesting conceptions, autocrats can hide the dirty deeds that all would agree undermine the possibility of political power being tempered by law precisely because they claim the democratic mandate for legal change (Krygier 2016). And so our question is, What work can the rule of law do in practice to protect democratic and accountable government?

3. THE RULE OF LAW IN THE WORLD

If the debate over the meaning of the rule of law reaches consensus on one point, it is that the rule of law is about law. In fact, we might ask why we even need the concept of the rule of law when we already have a concept of law. If authors referencing the rule of law are only demanding the proper enforcement of law already enacted, then is it not enough to talk about existing law? Why muddy the waters with an additional concept? The persistence of an idea like the rule of law implies that there is more to legality than simply insisting that existing law be properly enforced. But what?

A quick survey of the world's legal systems reveals that they vary in their institutional forms across a wide range so that what ruling according to law means concretely in any particular system is not the same as ruling according to law elsewhere. Do judges have the power to make law with their decisions? Is the parliament supreme so that no other body of state can override it? Can executives rule alone without parliamentary authorization either in emergencies or in general? Can the constitution (if there is an agreement on what a constitution is) be enforced by courts with the power to nullify all legal acts that conflict with it? If courts have the power to nullify unconstitutional legal acts, can all courts wield that power, or is the power held by only one specialized court? If there is a conflict between different laws, which wins out: the more entrenched law enacted earlier with the aspiration to bind the future, or the most recent legal enactment as an expression of the democratic will? Are there constraints on how fast law can change? Is international law automatically and fully integrated into the national legal system, or does it sit outside it, waiting to be invited in? These and many other questions divide legal systems on the topics of how law is properly created, applied, and altered, as well as what counts as law in the first place. Not surprisingly, the concept of the rule of law often implicitly or explicitly references these basic organizing principles when authors write with some particular legal system in mind, even if they purport to write in general. In this section, we consider legal philosophers in their national (or adopted national) contexts, from which it is possible to see how much theory about the rule of law rests on (or at least assumes the existence of) a specific background legal order.

In the English-speaking world, dominated by legal systems with the unique feature that the decisions of judges count as sources of law (though judges may be overridden in various ways) (Gardbaum 2013), the debate over the meaning of the rule of law has not surprisingly concentrated on the relative powers of legislatures and judiciaries in determining who has the last word. In England, Dicey's [1992 (1885), p. 114] formulation is iconic: "With us no man is above the law [and] every man, whatever be his rank or condition, is subject to the ordinary law of the realm and amenable to the jurisdiction of the ordinary tribunals." Although Dicey praised parliamentary sovereignty, ultimately he located the rule of law in the decisions of judges. His views were consistent with a "common law conception of constitutionalism" in which parliaments may create the framework of laws but judges are central to giving the law meaning and even filling in where positive law is otherwise silent (Walters 2020; 2021, p. 155). The rule of law in English-speaking jurisdictions from Dicey on has therefore not surprisingly tended to focus on the role of judges in ensuring respect for law.

H.L.A. Hart, a giant of British twentieth-century jurisprudence, gave little extended attention to the rule of law as such except to cabin it, along with his conception of law in general, to the realm of positive law, with justice and morality as supplementary values justified by political principles other than the rule of law (Hart 1958, Lacey 2007). But this standard view of English jurisprudence, elaborated in the purest form since Dicey in the work of Allan (1994), was already shifting as Hart wrote and was completely transformed by the time that Lord (Tom) Bingham (2010), the first Chief Justice of the newly reconfigured and renamed Supreme Court of the United Kingdom, wrote a small book to educate the public about the idea. Bingham's conception of the rule of law focused on the importance of both independent courts and Britain's embeddedness in the system of European human rights law, without mentioning the important backdrop of democratic government or, for that matter, parliamentary supremacy. But even with differences among writers who take the British legal model as a backdrop, the discussion of the rule of law tends ultimately to focus on the proper role of judge-made law as an essential source of individual liberties as well as a check on arbitrary political power.

Explanations of the rule of law in other common-law jurisdictions have been inspired by the English framing, not surprisingly given the common origins of their legal systems. Because Americans have constitutionalized and entrenched more of their legal order than have the British, however, the rule of law debate in the United States has focused more on general principles of law and their expression in a (judicially interpreted) constitution. Two Americans in particular tangled with Hart on the question of whether a more principled and less positivist concept of the rule of law was necessary. Fuller (1964) developed a widely used and almost entirely procedural account of law's "inner morality," tracking closely the newly constitutionalizing field of American criminal procedure that was developing at the time (Stuntz 1995). Fuller argued that law must be general, public, prospective, noncontradictory, intelligible, stable, capable of being followed, and applied as written, neutral principles that in practice allow judges to curb the arbitrariness of political actors.

Dworkin (1970), in an essay written about the turbulent 1960s and foreshadowing the principled constitutionalism for which he would later become famous, argued that the rule of law centrally requires that the political minority not be made subservient to the majority, citing "official lawlessness" when political branches ignore basic constitutional principles as the greatest threat to the rule of law. Later that decade, when he revisited the topic again, Dworkin (1977) shifted his focus more centrally to judges and the role they play in keeping state actors within constitutional bounds. But by contrast with the standard English view, Dworkin saw judges as the expositors of general principles of law beyond mere procedural constraints on the exercise of political power. Arguing against the "rule-book conception" of the rule of law in which the rules laid down must be enforced as written (a swipe at Hart), Dworkin (1977, p. 262, emphasis in original) instead leaned into what he called the "rights" conception, in which "moral and political rights [are] recognized in positive law, so that they may be enforced *upon the demand of individual citizens* through courts." Again, the underlying political order was relegated to the background in Dworkin's arguments, whereas the judges were front and center.

Some have joked that the United Kingdom and the United States are two countries divided by a common language, and English and American advocates of the rule of law can share the same joke. But although they differ in the basic elements they attribute to the rule of law, they are closer to each other than either is to most of the world's other legal systems precisely because they share a common blind spot. English is one of the few languages that fails to distinguish two conceptions of law (White 2019). One conception identifies law as a system of principles or rights, captured by *Ius* (Latin), *Recht* (German and Dutch), *Droit* (French), *Jog* (Hungarian), *Pravo* (Russian), *Derecho* (Spanish)—and the list could be multiplied. The other conception envisions law as positive legal enactment, captured by *Gesetz* (German), *Wet* (Dutch), *Lex* (Latin), *Loi* (French),

Törvény (Hungarian), *Zakon* (Russian), *Ley* (Spanish), and more [Schiavone 2012 (2005)]. In English, the word law covers both general principles and specific statutes, which is at least in part why the rule of law debate invites confusion both in English and in translation. In one of the more memorable mix-ups of the two senses of law when translated into English, Vladimir Putin's first presidential campaign in 2000 promised, with praise from the outside world, that he would bring to Russia the "dictatorship of the law" (Partlett 2012). The world might have been less surprised at what actually happened if it had understood that the word he used for law was *Zakon* (positive law) and not *Pravo* (justice).

Language is therefore not simply a transparent window through which one sees the world as it is. Language also functions like Eco's "past readings [that] . . . told us what we are supposed to discover." So why did English not sprout two concepts to represent the organizing principles of the legal order on one hand and the positive rule-based law on the other? Why did English law and many of its colonial descendants pack two very different conceptions into one word, much as the concept of the medieval king in Europe represented simultaneously the living monarch who could die and the office that lived on (Kantorowicz 1957)?

The origin story about law in common law systems points to the gradual systematization of court judgments over centuries before the routine formal enactment of statutes (Baker 2019). Long before an increasingly empowered parliament churned out positive law, and long before police departments, public prosecutors, and regulatory agencies were created to enforce this law, the common law had already established itself as existing before and above the modern state. It preceded and survived various political traumas (Kay 2014) and created the fiction for itself that it had existed since "time out of mind." (For a critical revision of this history, see Constable 1994.) Common law beyond the state kept absorbing and harmonizing the law created by a growing state apparatus, so there was no need to invent a wholly new word for the new positive law. As a result, the single concept of law persists in common-law writing about both law and rule of law.

Once one leaves the English language and its associated legal traditions, however, allied concepts differ substantially in their origins and core meanings. In Germany, for example, the origin story about the relationship between state and law is different, and so is the language used to describe what law does. In the German legal imagination, the founding of the state precedes the enactment of positive law, and so it makes little sense to talk about the rule of law without first focusing on the nature of the state that creates it. As a result, the German term that is imperfectly translated as the rule of law is the *Rechtsstaat*, a compound of state and law in the meaning of right, just, or fair. The idea of the *Rechtsstaat*, therefore, does not refer implicitly to the pervasive development of judge-made law but posits a particular normative quality of the state itself—that it is established as the creator of the very principled law by which it is bound.

The nineteenth-century debate over the *Rechtsstaat* began as a practical argument among legal reformers who were attempting to hold the absolutist state to account. They argued not only that the state itself should be governed by law, which applies to the rulers as much as to the ruled, but also that the state should act through law rather than through coercion (Costa 2007). Von Jhering [1997 (1915)] and Jellinek (1880) broke the philosophical deadlock over how this was to be achieved by elaborating variants on the idea of the self-limiting state, in which law was the mechanism through which the state constrains itself. Weber [1946 (1919)] channeled that view in arguing that the state was that entity exercising a monopoly on the use of force in which any deployment of violence must be legally grounded to be legitimate. In Weber's [1978 (1921)] typology of traditional, charismatic, and rational-legal authority, however, he did not discuss democratic authority as an available option. He was not alone. The German conceptualization of the law-based state developed in its first century without reference to popular sovereignty or democracy, nor did it assume that judges would be the key players keeping the state within legal bounds. Instead, the

idea of the *Rechtsstaat* stood for the proposition that the state would be constituted so as to bind itself through law (Meierhenrich 2021).

The twentieth-century interwar period saw lively German-language debates over precisely how law could do this. On one radical side of the debate, Kelsen [1967 (1934)] posited that the state could be envisioned as nothing but law, a configuration of coherent norms in a “pure theory” that could be analyzed without need for a separate concept of the state. Most others at that time disagreed. Some argued that the defining feature of the *Rechtsstaat* was not its purely legal character but the historical and sociological reality through which the separate development of the political system (guaranteeing order) and the legal system (guaranteeing freedom) required separation of powers so that each could check the other [Neumann 1986 (1936)]. Others remained suspicious that separation of powers could do this work and instead merged political and legal considerations into a single conception of the state animated by a common normative vision of law [Schmitt 2008 (1928)]. As Nazi Germany pitched into a “dual state” in which some people were accorded legal rights whereas others were cast into a legal no-man’s-land [Fraenkel 2010 (1938)], the dangers of abandoning structural guarantees of checks and balances enforced through law soon became clear. In a purely normative state, everything depended on which normative vision was politically victorious. And the Nazi takeover of the state demonstrated conclusively how dangerous that was.

The Germany that emerged divided and defeated at the end of WWII promised a new *Rechtsstaat*, one grounded firmly in the principle of human dignity in which all institutions of the state would be bound by a new rights-based constitution guarded by a powerful Constitutional Court with the capacity to hold all public power to account. Despite some historical controversy over how judges imagined their role in this new order (Scheppele 2013a; but see Hailbronner 2014), the new *Rechtsstaat* that emerged after the war clearly did not leave the specification of a normative foundation of the state to the vicissitudes of politics but embedded it in a strong entrenched conception of human dignity and fundamental rights. The post-WWII *Rechtsstaat* also incorporated multiple defenses against the return of a regime of horror through a robust conception of militant democracy (Greenberg 2015).

Not surprisingly, it is variants on the German *Rechtsstaat* rather than on the English rule of law that have characterized the development of parallel conceptions across Europe precisely because the co-creation of state and law built on a common imagined foundation of Roman law was the norm across the continent [Schiavone 2012 (2005)]. Both the French *État de droit* and the Italian *Stato di diritto* borrow heavily from German debates (Costa 2007, Heuschling 2021), as do other continental European conceptions.

But of course the world is bigger than Europe and North America. The spread of European colonialism meant that European models of law and rule of law were transplanted throughout the world, deeply in some places and shallowly in others. If only because they took it for granted, European powers often imposed on their colonies the colonial power’s vocabulary for talking about law. That said, empires did not bring European law into a local void. Instead, they tended to layer European norms and forms over local law already in place, which meant that the results were legally plural (Benton 2002, 2010; Merry 1988). Given the complexity of colonial rule, imagining state law as coherent and predictable and equally applicable to all, prominent features of most Anglo-American conceptions of the rule of law, simply was not what law looked like on the ground. Many years of coexistence between European and preexisting law in former colonies have resulted in a marble cake of different legal orders, each with their own jurisdictional niches, survivals from European origins, and local legal productions that outlasted the colonial period. As a result, state law became “not a single arena opposed to nonstate law but a composite of jurisdictions with unevenly exercised authority” (Benton & Ross 2013, p. 7).

Perhaps the best known example of the layering of language and practices from different legal systems in a single postcolonial state is the concept of *ubuntu* in South Africa, which has its roots in local legal practices but which has percolated up to the level of constitutional jurisprudence in the country's highest court, a court that has also deeply embedded itself in transnational human rights norms (Cornell & Muvangua 2012). But South Africa is not alone. Across the Global South, new legal orders are combining indigenous, postcolonial, and transnationally forged legal ideas, seeking to transform the rule of law.

Throughout the postcolonial world, then, we find both deadweight survivals from colonial law (Berda 2022) and innovations that have created, for example, a “constitutionalism of the Global South” (Maldonado 2013). This new constitutionalism has been characterized by active high-court policing of the fundamentals of the constitutional structure [called variously “protection of the basic structure” in India or Kenya (Roznai 2023) or the prohibition of the “substitution of the constitution” in Colombia (Deik 2014)], together with the robust enforcement of not only civil and political but also social and economic rights. Sometimes the new constitutional forms in the Global South have declared themselves avowedly transformational, turning debates about the rule of law away from backward-looking conceptions of law as constraints on power to a focus on law's emancipatory potential (Dann et al. 2020). These new aspirational senses of the rule of law bear little similarity to the conservative forms that have preceded them and form a new political imaginary in which law guides egalitarian change (Kjaer 2022).

Given that these diverse conceptions of the rule of law not surprisingly tend to assume features of their own varied legal systems in the background, some of the talking past each other that we see in the comparative rule of law debate can be accounted for simply by its different descriptive starting points. For example, we can see it in even more profoundly different variants in the “Asian values” debate (Shu-Chen 2007, Tay 2007), as well as in elaborations of the meaning of the rule of law in Islamic legal systems (Mohd 2022). Any set of diverse examples will show how much discussions of the rule of law depend crucially on what is taken for granted in the legal systems operating in the background of the conversation. The rule of law in the world means many different things precisely because law in the world does as well.

4. THE RULE OF LAW IN THE WILD

Given the variation that we have just identified, can any concept of the rule of law be useful in addressing what is now widely perceived as a law-related crisis across many different legal systems? In this section, we consider why appeals to the rule of law have appeared in recent decades as both panacea and symptom. The legal realists taught us that law on the books is not the same as law in action (Halpérin 2011, Pound 1910), and we can take up that same program with regard to the rule of law.

When people discuss the rule of law in policy mode, the rule of law is advanced as a solution to a problem that is often not precisely specified. Practical invocations of the rule of law promise to cure something, just as a diagnosis of the cause of a cough or a blinding headache will eventually lead to remedial action. Just as the rule of law in the world pointed us to different background assumptions on the part of those who invoke the idea, so too an exploration of the uses of rule of law in the wild will help us understand what problem more rule of law is designed to fix. Considering the rule of law as diagnosis is a different starting point than we began with in the last section, in which the rule of law was seen as systemic justification.

Although development of the idea of the rule of law (or *Rechtsstaat*) to describe the normative content of a legal order dates in earnest to the nineteenth century, deployment of the idea of the rule of law as a policy discourse deployed to solve current problems is much more recent. Carothers (1998) dates the “rule of law revival” to the 1980s, when waves of democratization

defeated autocracy in Southern Europe, then Latin America, and finally Eastern Europe—eventually spreading to parts of Asia as well. As transforming governments installed market economies, democratized politics, and claimed to adopt ideals of liberal constitutionalism, the rule of law became the rubric within which outside efforts were organized to assist these countries in their transitions. The general idea was that, however these new democracies chose to customize reform, they needed to establish a “bedrock” in which “the government is embedded in a comprehensive legal framework, its officials accept that the law will be applied to their own conduct, and the government seeks to be law-abiding” (Carothers 1998, p. 96). The rule of law thus began its currently active policy life as a discourse of international assistance to national reform movements rather than as a meditation on the essential features of the relationship between state and law.

Because rule of law policy assistance came with the democratic revolutions of the 1980s and 1990s, there was always something a bit odd about outsiders instructing newly empowered national leaders in how to run their newly democratic governments. Democracy, after all, gains legitimacy because it is endorsed by those who will be governed under its mandate, which seems on the surface to be in tension with outsiders having much of a say. As Western governments, international organizations, and international lawyers’ associations geared up to assist governments overcoming the legacies of autocracy, the rule of law became detached from the normative defense of any particular state model and retreated instead into purely technical advice on how to achieve particular narrow ends (Neate 2009, Silkenat & Libby 2021).

Instead of conceptually mediating the relationship between law and politics, then, the rule of law as a policy discourse shrank to be more and more about only law, narrowly conceived (Marshall 2014). In its most cramped understanding, rule of law assistance limited itself primarily to the “justice sector.” As international advisors consulted on how to set up a judiciary; how to select and train judges; and how to develop civil procedure, legal assistance, and access to justice, the rule of law became quite deliberately divorced from any normative conception of politics and became simply ensuring that the new laws of the new democracies would be enforced as written, making the whole system more predictable for insiders and outsiders alike (Golub 2006).

This new “rule of law industry” (Kleinfeld 2012) came with experts awash in money from the victorious West who gained legitimacy by appearing to have nothing to do with politics, working instead on what were conceived as purely mechanical challenges about how new institutions could be set up and run. Many of these Western experts had previously attempted and failed in the decolonialization movements of the 1950s and 1960s to bring better governance to postcolonial states when they simply transplanted Western models to radically different places without taking local cultures, histories, and norms into account (Schönteich 2013). With the “rule of law revival,” they needed a major rethink of what they were up to.

The new rule of law movement that was born in the 1980s therefore took a different tack. Instead of transplanting whole institutions and laws from the West into newly developing democratic states, consultants would encourage local stakeholders in this heady new democratic moment to take the lead (Kleinfeld 2012). Democracy would be reinforced by putting locally endorsed democrats out in front of the process. Moreover, the rule of law community had by that time learned that local knowledge was essential for creating a version of the rule of law capable of surviving in any particular context (Scheppelle 2019).

With this change of emphasis from universal to local knowledge and from transplants to customized bricolage, the transnational rule of law consultant was transformed from the man with the plan to a traveling advisor who could offer ideas, but who would no longer aspire to make key decisions about local legal change (Dezalay & Garth 2001). Consultants offered cosmopolitan ideas that ultimately needed to be adapted by those with the local knowledge about specific

places. The rule of law was reduced to advice about the most apolitical features of judicial systems, with the political, local, and democratic input provided by others.

To acknowledge that local knowledge was now a central ingredient in all rule of law projects, the transnational experts took their “self-denying expertise” (Desai 2023) as a badge of honor, demonstrating they were really democrats at heart because they were no longer trying to override the legitimate local stakeholders with their own foreign ideas. This denial of relevant knowledge generated what Desai (2023) has termed “expert ignorance,” in which the experts deferred to the locals for contextual knowledge while offering only decontextualized abstractions as advice.

Because the new rule of law reformers deferred to their local interlocutors for the local political heritage and details of the specific terrain, local leaders were therefore offered a menu of choices rather than a one-size-fits-all model. Experts became the global equivalent of roving salesmen, peddling wares from a global marketplace that could be taken up (or not) by local consumers. Experts explained variations in the standard models of democratic governance (parliamentarism versus presidentialism, federalism versus unitary state, diffuse versus concentrated judicial review, inquisitorial versus adversarial models of criminal procedure) and then left the choice of alternatives to the locals.

The rule of law consulting community thus gave lip service to the idea that each government must be responsive to its particular constituencies in the name of democratic legitimacy. But any interventions in this governance space, however disguised as technocratic, were never really neutral. The rule of law movement was always infused with the values left standing at the end of the Cold War, with the protection of civil and political rights, checked and balanced powers, open states engaged in transnational cooperation, liberalized economies, powerful independent judiciaries, and internal and external peace—along with many other things—as background norms that had won the international battle for hearts and minds. Or so many thought at the time. But pushing a specific normative model clashed with the idea of leaving democratic choices to local leaders. As a result, these general ideas were taken for granted because they were consistent with many local variations, which turned out to be both their strength and their weakness.

Twenty years into this locally led model of rule of law reform, in which technical assistance steered clear of overt normative commitments, more and more national governments began moving away from sincere support for these background norms. The reasons for our present autocratic revival are many and contested (Bartels 2023, Gibson 2012, Mudde & Kaltwasser 2017, Walter 2022). But in democracy after democracy, aspirational autocrats have won office through elections and consolidated their power under cover of law (Scheppele 2018). Having been reduced to mere technical assistance about how law could be empowered to be more effective without scrutinizing the goals it was supposed to achieve, appeals to the rule of law turned out to be of little help in preventing the damage.

Aspirational autocrats have therefore been able to use law to consolidate rather than check power because the range of alternatives available to them turned out to be surprisingly easy for them to game. The strongest democracies in the world, Nordic democracies, are characterized by weak judicial review and unicameral parliaments—so some aspirational autocrats claimed to mimic these models by weakening peak courts and abolishing upper houses to help establish their autocratic grip. For example, when Hugo Chávez’s 1999 constitution in Venezuela eliminated the upper house so that he could more easily control the parliament (Corrales 2015), who was to say that this was a violation of the rule of law? Ditto when Ecuador abolished its upper house in the 2008 constitutional revision. At the time, the United Kingdom’s good-government Constitution Unit did a compelling survey of the reasonableness of unicameral parliaments (Const. Unit UK 1998)! When Recep Tayyip Erdoğan used the perfectly legal referendum process provided for in the Turkish Constitution to change his country’s constitution from a parliamentary to a

presidential system so that he could gain almost unlimited powers (Scharfe 2015), who was to say that presidentialism—one of those reasonable alternatives peddled by rule of law consultants hawking global wares—was truly a violation of the rule of law? When Putin changed the Russian system for elections to the lower house of parliament so that all representatives had to run on national party lists—thus giving his party a permanent supermajority in the Duma (Schepppele 2005)—who could say that party-list instead of individual-constituency parliamentary elections violated the rule of law given how many good democracies used just such a system?

The new aspirational autocrats learned that stitching together what were perfectly reasonable alternatives to achieve autocratic local results passed rule of law tests. But, recalling Dr. Frankenstein's creation of a monster from once-normal body parts of different people, the end result was what I have called a Frankenstate (Schepppele 2013b, 2018, 2019). The new autocrats mixed and matched laws from good countries toward autocratic ends, something difficult to diagnose on rule of law grounds because there was nothing wrong with the individual components. The final composite, however, was monstrous.

As quantitative measures of the rule of law and democracy show, the world went into reverse around the turn of the millennium, with more countries backsliding on democracy and rule of law than have strengthened either since. Instead, an increasing number of both old and new democracies started to customize the internationally certified range of global models on offer to achieve local results inconsistent with implicit post-Cold War norms about checked and balanced powers, about the strong defense of rights, about the power of law to constrain rulers, and about the sustainability of democratic government beyond the term of the leader in power. This is what many are now pointing to as the crisis of the rule of law. Law is not being used to support and sustain democratic governments but instead is used cynically under cover of globalized international models to undermine the unspoken norms that hid behind a façade of depoliticized advice. As long as rule of law advising was mute on the normative vision that would give rule of law the power both to keep governments from consolidating power in the hands of autocrats and to maintain both rights and checked powers, the rule of law as a policy discourse could do little to stop the decline. Not surprisingly, obituaries for the rule of law have multiplied (Marshall 2014, van Lochem 2017).

5. THE RULE OF LAW WRIT LARGE

The variety of rule of law cultures that we identified in the world were far more successful at bringing power under constraint of law than were the rule of law consultants who rejected the connection between law and politics. Given the evident failure of the rule of law revival and the concerns over a growing global rule of law crisis that have developed in its wake, those who are worried about the rule of law as a policy problem are wondering where to turn. A world of rule of law silos in which each local conception stands on its own, drawing from national traditions that bind law, politics, and the state to a locally defensible normative vision, may once have created workable visions of the rule of law within many different societies. However, given that the problems are not merely local but cascading into global form, norm entrepreneurs are increasingly seeking to infuse the grounded local models with transnational content.

As the rule of law crisis became increasingly urgent over the last two decades, new norm entrepreneurs began pointing to the fact that countries—even and maybe especially democracies showing signs of autocratic capture—once signed onto transnational treaties that obligated them to honor broader normative standards as part of their own domestic law. Thus, even while the rule of law revival of the 1980s and 1990s sent freelance consultants far and wide, the power and reach of treaties enforced by regional courts were deepening at the same time (Alter 2014). Whereas

regional human rights courts grew at first by simply vindicating the claims of individuals against states as a way of backstopping national judiciaries, the last decade has seen a rapid shift in the way that these transnational courts now understand their role in promoting and defending a normative vision of law as a constraint on arbitrary power and as a crucial ingredient of democratic governance. In short, regional courts have become a new site for rule of law promotion.

For example, European states—signing onto an increasingly empowered European Union and Council of Europe—have become increasingly bound together through ever-stronger legal ties (Bakardjieva Engelbrekt & Groussot 2019). Both the EU Court of Justice and the Council of Europe’s Court of Human Rights have rapidly developed a jurisprudence over the last decade that requires democratic institutions to take particular structural forms, particularly with regard to judicial independence at the Court of Justice and to both judicial independence and democratic election standards at the Court of Human Rights (Scheppele 2024a). Latin America has also become highly legally integrated through the Organization of American States, its human rights court, and other regional organizations (Merke et al. 2021). This has led the Inter-American Court of Human Rights to move from foregrounding individual rights cases to laying out the preconditions for human rights–based governance, including not only judicial independence but also presidential term limits and electoral integrity (Scheppele 2024a). Africa’s experiment with pan-African courts may be newer, but it shows signs of increasing durability, originality, and bravery (Okafor & Dzah 2021). Even Asian countries have begun to discuss regional human rights courts as a normative bond linking the new democracies in the region, though the progress there has been slower (Baik 2012). Americans may be forgiven for not having noticed the explosive growth in this new transnational prodemocratic jurisprudence, as American exceptionalism has tended to limit the influence of internationally circulating ideas at home.

But this institutional growth in jurisprudence of transnational courts provides a new possibility for anchoring the meaning of the rule of law somewhere between the rule of law as a purely national tradition on one hand and an apolitical gospel of the rule of law spread by international freelancers on the other. I have called this third conception “the rule of law writ large” (Scheppele 2024b). This conception starts from the observation that many national governments bound themselves to transnational standards through treaties using their own domestic democratic processes and therefore brought into their national law a North Star of external standards that they pledged to follow. When aspirational autocrats have later come along to crash these democracies from within, their threats could be met with the deployment of transnationally originating but nationally binding legal standards that are harder to game because they are not completely dependent on factors internal to the state in question. The rule of law writ large expands national rule of law traditions to take on board a growing range of transnationally forged principles, made binding in domestic law by democratic decisions to join various treaty regimes. This new transnational law thus anchors potentially fragile democracies against backsliding and creates a new opening to the rule of law.

As the global rule of law crisis has gained more attention over the last decade, transnational organizations and their associated courts have sped up their creation of precisely the sort of law that can be used to prevent abuse of power by aspirational autocrats. For example, the European Court of Justice has developed a surprisingly deep jurisprudence supporting judicial independence to address the fact that Poland and Hungary had compromised their judiciaries (Pech & Kochenov 2021). As term limits for presidents fell across Latin America, the Inter-American Court of Human Rights adopted an advisory opinion at the request of Colombia to opine on the relationship between democracy and presidential tenure (Inter-Am. Court Hum. Rights 2021). Multiple pan-African courts have been involved in ensuring that national elections are open to nonincumbents (Gathi & Akinkugbe 2021). The results of this transnational jurisprudence are fragmentary and

changing by the day. But they represent a new form that the rule of law might take, one that does not search for abstract criteria but builds up the pieces of a rule of law system one challenge at a time. The answer to the rule of law crisis within backsliding democracies is now being built from the decisions of transnational courts, developing standards originating in treaty commitments that can feed back into national law. This new jurisprudence gives domestic and transnational actors alike the power to resist the assaults on both democracy and the rule of law.

By looking at the life of the rule of law—how it has developed in response to particular historical challenges and how it has adapted to address new forms of abuse of power—we have not attempted to develop an abstract definition of the core elements of the rule of law. Instead, we have tracked how the rule of law is a dynamic force that has evolved over time to meet new challenges by remaking itself. As the global rule of law crisis has spread and taken new forms, so too have the resources that may be used to restore the rule of law through law itself.

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